

25NNCV03495 25NNCV03495

County: los-angeles

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Case Number: 25NNCV03495 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Judgment on the Pleadings

Hearing Date: 8/7/26

CASE NO./NAME: 25NNCV03495/ Mageno v.

Dang Good! Ice Cream, Inc.

Moving Party: Defendant Dang Good! Ice
Cream, Inc.

Responding Party: Plaintiff Perla Mageno

Notice: Sufficient

Ruling: DENY

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a disability discrimination case. Plaintiff

Perla Mageno (Plaintiff) is a visually impaired individual who brought this action against defendant Dang Good! Ice Cream Inc. (Defendant) for its failure to design, maintain, and operate its website to be accessible and independently usable by Plaintiff and other visually impaired individuals with disability.

On May 21, 2025, Plaintiff filed a Complaint against Defendant for Violations of the Unruh Civil Rights Act due to this purported failure.

On June 10, 2026, Defendant filed the instant motion seeking judgment on the pleadings. On July 27, 2026, Plaintiff filed an opposition. On July 31, 2026, Defendant filed a reply.

REQUEST

FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibits: (A) Defendant's Responses to Plaintiff's Set One Requests for Admission; (B) Defendant's Responses to Plaintiff's Set One Form Interrogatories; (C) Screenshot of the Yelp business listing for "Dang Good Ice Cream," located at 18220 Colima Road, Suite 100, Rowland Heights, California 91748; (D) Screenshot of Defendant's "Where to Buy" web page; (E) Defendant's Responses to Plaintiff's Set One Special Interrogatories; (F) Long v. Live Nation Worldwide, Inc., No. C16-1961 TSZ (W.D. Wash. July 23, 2018) (Docket No. 50); (G) Settlement Agreement Between the United States of America and Ticketmaster L.L.C. (Dec. 22, 2005), as published by the United States Department of Justice.

Exhibits A, B, and E are Defendant's discovery responses. Exhibits C and D are part of the court's record in this action as they have been filed as Exhibits to previous motions; they contain the address of Defendant's business and webpage. Exhibits F and G are records of the Court in federal cases. The request is granted. (Evid. Code, § 452(d), (g).)

LEGAL

STANDARD

A motion for judgment on the pleadings is the functional equivalent of a general demurrer. (*American Airlines, Inc. v. County of San Mateo* (1996) 12 Cal.4th 1110, 1118.) A general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the [motion] will be overruled. (*Campbell v. Genshlea* (1919) 180 Cal. 213, 217.) In considering a motion for judgment on the pleadings, the court will look to “the face of the challenged pleading or from any matter of which the court is required to take judicial notice”. (Code Civ. Proc., § 438.)

“Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439(a).)

DISCUSSION

Defendant seeks judgment on the pleadings as to Plaintiff’s only cause of action for Violations of the Unruh Act.

Meet and Confer

Plaintiff

argues that Defendant has failed to meet and confer ahead of filing the instant motion. (Opp., pp. 4-5.) Defendant does not address meet and confer efforts in their motion or reply. Here, Defendant has blatantly failed to comply with meet and confer efforts pursuant to Code of Civil Procedure section 439(a). While insufficient meet and confer is not itself grounds to deny the motion (Code Civ. Proc., § 439(a)(4)), Defendant is admonished to comply with meet and confer requirements in the future.

Nonetheless, the

Court will review the motion on the merits.

Violations of the Unruh Civil Rights Act

The Unruh Act

provides that "all persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, or medical condition are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever." (Cal. Civ. Code § 51(a).) The ADA provides that a place of public accommodation engages in unlawful discrimination if it fails to "take such steps as may be necessary to ensure that no individual with a disability is excluded, denied services, segregated or otherwise treated differently than other individuals because of the absence of auxiliary aids and services." (Robles v. Domino's Pizza, LLC, (9th Cir. 2019) 913 F.3d 898, 904.) The Unruh Act applies to websites where the website "facilitate[s] access to the goods and services of a place of public accommodation" and where alleged inaccessibility "impedes access to the goods and services." (Id., 904-906.)

Place of Accommodation

Defendant

argues that Plaintiff cannot state a cause of action for Violations of the Unruh Act because Defendant does not have a brick-and-mortar location subject to the Act, and that they are a purely e-commerce business that does not qualify as a place of accommodation. (Mot., pp. 2-3.) Further, Defendant argues that there is not sufficient nexus between their website and a physical place of public accommodation as described in Robles v. Domino's Pizza LLC. (Mot., p. 3.) Defendant argues that because Plaintiff cannot establish an ADA violation at a place of public accommodation or any intentional discrimination, Plaintiff cannot establish a violation of the Act. (Mot., pp. 3-4.)

In

opposition, Plaintiff argues that Defendant has failed to meet and confer as required before filing a motion for judgment on the pleadings. (Opp., p. 4.) Moreover, Plaintiff argues that the Complaint sufficiently alleges a nexus between Defendant's website and a physical place of accommodation as required by the Act. (Opp., pp. 6-7.) Plaintiff argues that Defendant's own discovery responses refute the assertion the instant motion rests on, the existence of a physical place of accommodation operated by Defendant. (Mot., p. 8.)

Accordingly, Plaintiff argues they have sufficiently pled that there is a sufficient nexus between Defendant's website and a physical place of public accommodation, subjecting Defendant to the Act.

In

reply, Defendant argues that the physical place of public accommodation was actually only accessible to wholesale purchasers and that Plaintiff fails to identify the location in the Complaint, making the pleading insufficient. (Reply, pp. 2-3.) Moreover, Defendant argues that Plaintiff fails to plead any intentional discrimination at the physical location. (Reply, p. 5.) Defendant questions the motive of Plaintiff, as a desire to compliance check rather than a genuine attempt to access their goods and services. (Reply, p. 6.)

Here,

Defendant declares that they are a purely wholesale business that sells ice cream products to retailers and does not maintain a retail storefront or any form of a brick-and-mortar facility open to the public. (Dang Decl., ¶¶ 2-3.) Further, Defendant declares that they are aware of a storefront called 'Dang Good Ice Cream' that carries ice cream made by Defendant (Dang Good! Ice Cream Inc.) but denies owning, operating, managing, or maintaining said location. (Dang, Decl., ¶¶ 4-5.) However, in Defendant's judicially noticed discovery responses, Defendant denies having an operating website and admits multiple times to operating a "public place of accommodation as defined by 42 U.S.C. §12181(7)" and explicitly confirms that this place of accommodation is a physical place. (RJN, Exh. A, RFA ¶¶ 1-3, 5-6.)

By Defendant's

own admission there is a physical place of accommodation to which their website directs patrons, making the Act applicable to the instant action. (Dang Decl., 2-3; RJN, Exh. A, RFA ¶¶ 1-2.) Plaintiff has pled so in the Complaint, (Comp., ¶¶ 19-20.) Defendant now confirms the existence of the website but denies that they operate a public place of accommodation in direct opposition to their prior statements. This is a factual determination that a motion for judgment on the pleadings cannot determine.

Since Defendant has not established that

Plaintiff has failed to plead the cause of action for Violations of the Unruh Act, the motion is DENIED.

CONCLUSION

AND ORDER

Defendant's Motion for Judgment on the
Pleadings is DENIED.

MOVING PARTY is to give notice and provide
a proposed order consistent with this ruling within 15 days from this date.